

Employee and subcontractor requirements decision

7 October 2026 Consultation v0.4 Review 3

Decision D03 approved for controlled drafting: employees and subcontractors performing the same prescribed residential carpentry work meet the same technical competence standard. Additional role requirements follow relevant responsibilities, authority and risk. Dan confirmed this direction on 7 October 2026.

Approved drafting treatment

- Use a common technical competence standard for the same work, with clear individual responsibility for work quality, safety and boundary decisions.
- Do not impose business or financial requirements on employees where those requirements are unrelated to their work authority.
- Apply relevant subcontractor business, contractual, probity and insurance requirements only where justified; final requirements need legal and proportionality review.
- Preserve verified competence when a worker changes employment status. Assess additional role requirements without unnecessary repeat technical assessment.
- Retain registered-builder project accountability and engineer, surveyor and licensed-trade boundaries. No consumer-contracting or builder authority is created by this decision.
- Statutory titles, legal feasibility, insurance and below-\$10,000 contracting remain source-gated. The deck's proposed permission summary and the unresolved transcript distinction remain accurately attributed.

Changes and remaining gate

Review 3 changes Question 6, the primary role recommendation, consultation implications table and document control. D01 residential-only scope remains approved. D02 is next: future apprenticeship entry and verified existing-worker equivalence. Transition duration, retirement support, proportionate assessment and conditional support remain as recorded earlier. No statutory model, government endorsement or evidence-confidence increase is inferred.

Control and QC

The original v0.3 DOCX and PDF hashes remain unchanged. All 13 consultation question headings, the historical RIS table and contrary evidence are preserved. Review 2 remains available for comparison. This decision changes the review draft, not

repository canonical findings, website content or the remote branch. No push, PR, merge, publication, submission or outreach performed.

Controlled branch checkpoint: copilot/controlled-consultation-submission-v04 at 8309d5006bd260ebbd888e3e4c2c4c9f26298621, as verified earlier on 7 October; approved base 5ffbc77b172938f3a4fda316d552a34b2ceb04c4. No fresh remote verification claimed by this update. Legal, policy, economic and practitioner review remain outstanding.